STANDARD OPERATING PROCEDURE			P-4800
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **08/02/21**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES			
SUBJECT CRIME INVESTIGATION	CROSS REFERENCE I-6200 EVIDENCE AND PROPERTY P-4810 CRIME SCENE			

I. Purpose:

The purpose of this policy is to establish the procedures for investigating crimes and requesting the on-call investigator.

II. Policy:

The Road Patrol deputies' actions at a crime scene may contribute materially to the apprehensions and prosecution of the perpetrator and often determines the outcome of the overall investigation. Deputies shall perform the appropriate tasks to ensure a thorough investigation.

III. Procedure:

A. Crime Investigation-Deputy Responsibilities: The initially assigned deputy at the scene of any crime shall be the preliminary investigator.

1. After the safety of the scene is ensured, the deputy shall determine if investigations assistance may be required. The deputy shall notify the shift supervisor under the following conditions:

a) The incident involves a felony crime against a person.

b) The incident involves a felony property crime.

c) The incident involves a non-natural death.

d) The incident involves child abuse or neglect.

e) The crime scene requires processing by crime lab technicians including, but not limited to the following: extensive photographs,

fingerprints, tire impressions, a crime scene diagram, a photo lineup, or other physical evidence needs collection (Only an investigator, shift supervisor, or command officer may request the crime lab).

f) A search warrant is required to obtain further evidence.

2. If the initial deputy believes the scope of the crime is such that there may be need of an investigator, he or she shall:

a) Contact the shift supervisor. The shift supervisor shall advise the deputy if an investigator will respond.

b) Preserve the crime scene (see P-4810 Crime Scene).

c) Locate all individuals at the crime scene and control their movements:

(1) Control all individuals at the scene; prevent individuals from altering/destroying physical evidence.

(2) Identify all individuals at the scene. Identification shall include names, dates of birth, addresses and all relevant telephone numbers. Deputies should adhere to the following regarding specific parties:

(a) Victims: provide necessary medical aid and protection.
(b) Suspects: secure and separate
(c) Witnesses: secure and separate
(d) Bystanders: determine whether individuals are witnesses, if so secure and separate, if not, remove from the scene.

(3) No person should be allowed to leave the area. If a person insists on leaving and there is no legal reason to detain the party further, the deputy shall establish reliable identification (from a driver's license, state ID, birth certificate, etc.).

(4) The initial deputy should obtain a brief statement from all parties.

d) Remain at the scene until released by a supervisor, a command officer, or an investigator.

e) The initial deputy shall provide a detailed briefing to the arriving investigator and shall assist as directed.

f) Should the deputy be required to leave as a result of an **emergency** call prior to the arrival of the investigator, he or she shall instruct the

reporting party that an investigator is en route and nothing is to be disturbed or touched.

g) The deputy shall complete an incident report, including:

(1) Observations of the crime scene including the location of individuals and items within the scene.
(2) Conditions upon arrival (lights: on or off, doors and windows: open or closed, smells, temperature, etc.)
(3) Personal information from complainant, witnesses, victims, suspects, and any statements or comments.
(4) The deputy's own actions.

3. If the initial deputy believes the scope of the crime is such that he or she does not require further assistance or the deputy is advised an investigator will not be responding, he or she shall adhere to the following guidelines:

a) The deputy shall complete a thorough investigation which may include, but may not be limited to:

(1) Taking photographs.
(2) Collecting evidence (see I-6200 Evidence and Property).
(3) Interviewing complainant, victim(s), witnesses and suspect(s).
(4) Arresting the suspect(s) or requesting an arrest warrant.

b) The deputy shall complete an incident report.

c) After the initial investigation, the case may be forwarded to the Investigations Division if the deputy is unable to complete the follow-up investigation and one of the following conditions exists:

(1) The suspect has been identified and may be located.
(2) The suspect has been identified and requires a formal interrogation.
(3) The suspect's vehicle has been identified.
(4) There are a limited number of possible suspects.
(5) There is reason to believe the crime may be solved with a reasonable amount of investigative effort.
(6) Public interest in the crime may lead to assistance in solving the crime.
(7) There are witnesses to the crime that have not been interviewed.
(8) Stolen identifiable property is believed to be at a specific location (e.g. a pawn shop).

B. Follow-up Investigation-Deputy Responsibilities: Road Patrol deputies may complete follow-up investigations adhering to the following guidelines:

1. If the deputy plans to conduct further investigation after the day of the original incident, the deputy shall complete an incident report and indicate "further reports shall be forthcoming" at the end of the narrative.

2. The deputy shall advise the shift supervisor that he or she shall be conducting a follow-up investigation and the estimated time required to complete the follow-up. The deputy must have permission from the shift supervisor to conduct follow-up work more than 5 days after the date of the original incident report.

3. Follow-up investigations shall be completed without unnecessary delay.

4. Follow-up investigations may include:

a) Apprehending suspects.
b) Conducting additional interviews.
c) Seeking additional information.
d) Conducting searches for physical evidence.
e) Determining a suspect's involvement in other crimes.
f) Checking a suspect's criminal history.
g) Preparing a case for court presentation.
h) Making additional contact with a victim.

5. The deputy conducting the follow-up investigation shall complete a supplemental report (or an arrest report, if appropriate) with the original incident report's number.

C. Returning Suspect to Crime Scene-Deputy responsibilities: During the investigation of a crime, a deputy may be required to return a possible suspect to the scene of the crime. Deputies shall adhere to the following procedures when returning a suspect to the scene of a crime:

1. The suspect must be returned to the scene within 2 hours of the time of the crime.

2. The suspect must generally fit the description of the individual sought for the crime.

3. If the deputy has probable cause to believe the individual committed the crime, the suspect may be placed in custody and taken back to the scene for identification.

4. If the deputy lacks probable cause, the deputy should ask the suspect if he or she will return to the scene voluntarily.

a) If the deputy has reasonable suspicion that the person is responsible for the crime, but the individual refuses to accompany the deputy, temporary detention of the individual is justified.

b) In such an instance, witnesses and victims shall be transported to the location of the suspect for identification.

D. **Crime Investigation-Supervisor Responsibilities:** If possible, the shift supervisor shall respond to all major crime scenes:

1. The shift supervisor shall gather the available information and determine the need for the on-call investigator. The shift supervisor shall contact the on-call investigator under the following conditions:

a) All felony crimes against persons.

b) Any felony property crimes where additional follow-up is required either by the road patrol deputies or investigators.

c) The incident involves a non-natural death.

d) The incident involves child abuse or neglect.

e) The crime scene requires processing by crime lab technicians.

f) A search warrant is required to obtain further evidence.

2. The shift supervisor shall make contact with the on-call investigator and determine if an investigator will respond. The shift supervisor shall advise the on-scene deputy of the investigator's decision. The shift supervisor may have the on-scene deputy contact the on-call investigator to provide details of the incident. If the On-Call Investigator is not required to respond, but may be required to assist with follow-up, he or she may be notified by e-mail or memorandum or in person during normal business hours.

3. The shift supervisor or the on-call investigator may request Communications contact the Douglas County Crime Lab to respond to the scene.

4. The shift supervisor shall ensure that all appropriate reports and follow-up investigations are completed.

5. If a deputy will be conducting a follow-up investigation on a felony or will be conducting a follow-up investigation more than 5 days after the original report,

the shift supervisor shall notify (verbally or in writing) the on-call investigator of the details on the case and the intended follow-up.